



CHAPTER 18.

An Act to provide for giving effect to a Convention on International Civil Aviation signed at Chicago on the seventh day of December, nineteen hundred and forty-four, and to make further provision for the regulation of air navigation; to provide for giving effect to certain provisions of an Interim Agreement on International Civil Aviation so signed; and for purposes connected with the matters aforesaid.

[27th March 1947.]

WHEREAS a Convention (hereinafter referred to as "the Paris Convention") for determining by a common agreement certain uniform rules with respect to international air navigation was signed on behalf of His Majesty in Paris on the thirteenth day of October, nineteen hundred and nineteen, and by the Air Navigation Act, 1920, provision was made for enabling His Majesty to give effect to the Paris Convention and for the general control and regulation of air navigation :

And whereas on the seventh day of December, nineteen hundred and forty-four, at the International Civil Aviation Conference held at Chicago, there were signed on behalf of the Government of the United Kingdom a Convention on International Civil Aviation (hereinafter referred to as "the Chicago Convention") intended to supersede the Paris Convention, and an Interim Agreement on International Civil Aviation (hereinafter referred to as "the Interim Agreement") to have effect until the coming into force of the Chicago Convention :

And whereas a copy of the final Act of the said Conference including (amongst other things) the texts of the Chicago Convention and the Interim Agreement was, on the fourth day of April, nineteen hundred and forty-five, presented to Parliament by command of His Majesty :

And whereas it is expedient to provide for giving effect to the Chicago Convention, and to section three of Article XIII of the Interim Agreement (which relates to the application of aviation practices), and to make further provision for the regulation of air navigation :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Power to
give effect
to Chicago
Convention
and regulate
air navigation.

1.—(1) His Majesty may by Order in Council make such provision as appears to Him to be requisite or expedient—

(a) for carrying out the Chicago Convention, any Annex thereto relating to international standards and recommended practices (being an Annex adopted in accordance with the Convention) and any amendment of the Convention or any such Annex made in accordance with the Convention ; or

(b) generally for regulating air navigation.

(2) Without prejudice to the generality of the powers conferred by the preceding subsection and without prejudice to any of the provisions of the Air Navigation Acts, 1920 and 1936, His Majesty may by Order in Council make provision—

(a) as to the registration of aircraft in the United Kingdom ;

(b) for prohibiting aircraft from flying unless certificates of airworthiness issued or validated under the Order are in force with respect to them and except upon compliance with such conditions as to maintenance or repair as may be specified in the Order ;

(c) for the licensing, inspection and regulation of aerodromes, for access to aerodromes and places where aircraft have landed, for access to aircraft factories for the purpose of inspecting work therein carried on in relation to aircraft or parts thereof and for prohibiting or regulating the use of unlicensed aerodromes ;

(d) for prohibiting persons from engaging in, or being employed in or (except in the maintenance at unlicensed aerodromes of aircraft not used for or in connection with commercial, industrial or other gainful purposes) in connection with, air navigation in such capacities as may be specified in the Order except in accordance with provisions in that behalf contained in the Order, and for the licensing of those employed at aerodromes licensed under the Order in the inspection or supervision of aircraft ;

(e) as to the conditions under which, and in particular the aerodromes to or from which, aircraft entering or leaving the United Kingdom may fly, and as to the conditions

- under which aircraft may fly from one part of the United Kingdom to another ;
- (f) as to the conditions under which passengers and goods may be carried by air and under which aircraft may be used for other commercial, industrial or gainful purposes and for prohibiting the carriage by air of goods of such classes as may be specified in the Order ;
 - (g) for minimizing or preventing interference with the use or effectiveness of apparatus used in connection with air navigation, and for prohibiting or regulating the use of such apparatus as aforesaid and the display of signs and lights liable to endanger aircraft ;
 - (h) generally for securing the safety, efficiency and regularity of air navigation and the safety of aircraft and of persons and property carried therein, for preventing aircraft endangering other persons and property and, in particular, for the detention of aircraft for any of the purposes specified in this paragraph ;
 - (i) for requiring persons engaged in, or employed in or in connection with, air navigation to supply meteorological information for the purposes of air navigation ;
 - (j) for regulating the making of signals and other communications by or to aircraft and persons carried therein ;
 - (k) for regulating the use of the civil air ensign and any other ensign established by His Majesty in Council for purposes connected with air navigation ;
 - (l) for prohibiting aircraft from flying over such areas in the United Kingdom as may be specified in the Order ;
 - (m) for applying, adapting or modifying the enactments relating to customs in relation to aerodromes and to aircraft and to persons and property carried therein and for preventing smuggling by air, and for permitting in connection with air navigation, subject to such conditions as appear to His Majesty in Council to be requisite or expedient for the protection of the revenue, the importation of goods into the United Kingdom without payment of duty ;
 - (n) as to the manner and conditions of the issue, validation, renewal, extension or variation of any certificate, licence or other document required by the Order (including the examinations and tests to be undergone), and as to the form, custody, production, cancellation, suspension, endorsement and surrender of any such document ;
 - (o) for regulating the charges that may be made for the use of aerodromes licensed under the Order and for services provided at such aerodromes ;

(p) for prescribing, subject to the consent of the Treasury, the fees to be paid in respect of the issue, validation, renewal, extension or variation of any certificate, licence or other document or the undergoing of any examination or test required by the Order and in respect of any other matters in respect of which it appears to His Majesty in Council to be expedient for the purpose of the Order to charge fees ;

(q) for exempting from the provisions of the Order or any of them any aircraft or persons or classes of aircraft or persons.

(3) An Order in Council under this section may make different provision with respect to different classes of aircraft, aerodromes, persons or property and with respect to different circumstances and with respect to different parts of the United Kingdom but shall, so far as practicable, be so framed as not to discriminate in like circumstances between aircraft registered in the United Kingdom operated on charter terms by one air transport undertaking and such aircraft so operated by another such undertaking.

(4) An Order in Council under this section may, for the purpose of securing compliance with the provisions thereof, provide for the imposition of penalties not exceeding a fine of two hundred pounds and imprisonment for a term of six months, and, in the case of any provision having effect by virtue of paragraph (l) of subsection (2) of this section, may also for that purpose provide for the taking of such steps (including firing on aircraft) as may be specified in the Order.

(5) This section shall have effect in lieu of sections one, two and three of the Air Navigation Act, 1920, and accordingly for subsection (2) of section seven of that Act (which provides by reference to section three thereof for the enforcement of orders under the said section seven) there shall be substituted the following subsection :—

“(2) An order under this section may make, for the purposes of the order, such provision as an Order in Council under section one of the Air Navigation Act, 1947, may make for the purpose of securing compliance with provisions thereof having effect by virtue of paragraph (l) of subsection (2) of that section.”

Nuisance
caused by
aircraft on
aerodromes.

2.—(1) An Order in Council under section one of this Act may provide for regulating the conditions under which noise and vibration may be caused by aircraft on aerodromes and may provide that subsection (2) of this section shall apply to any aerodrome as respects which provision as to noise and vibration caused by aircraft is so made.

(2) No action shall lie in respect of nuisance by reason only of the noise and vibration caused by aircraft on an aerodrome

to which this subsection applies by virtue of an Order in Council under section one of this Act, so long as the provisions of any such Order in Council are duly complied with.

3.—(1) Any lawful entry into the United Kingdom or any lawful transit across the United Kingdom, with or without landings, of an aircraft to which this section applies shall not entail any seizure or detention of the aircraft or any proceedings being brought against the owner or operator thereof or any other interference therewith by or on behalf of any person in the United Kingdom, on the ground that the construction, mechanism, parts, accessories or operation of the aircraft is or are an infringement of any patent, design or model.

Exemption
of aircraft
and parts
thereof
from seizure
on patent
claims.

(2) The importation into, and storage in, the United Kingdom of spare parts and spare equipment for an aircraft to which this section applies and the use and installation thereof in the repair of such an aircraft shall not entail any seizure or detention of the aircraft or of the spare parts or spare equipment or any proceedings being brought against the owner or operator of the aircraft or the owner of the spare parts or spare equipment or any other interference with the aircraft by or on behalf of any person in the United Kingdom on the ground that the spare parts or spare equipment or their installation are or is an infringement of any patent, design or model:

Provided that this subsection shall not apply in relation to any spare parts or spare equipment which are sold or distributed in the United Kingdom or are exported from the United Kingdom for sale or distribution.

(3) This section applies to an aircraft, other than an aircraft used in military, customs or police services, registered in any country or territory in the case of which there is for the time being in force a declaration made by His Majesty by Order in Council, with a view to the fulfilment of the provisions of the Chicago Convention to which this section relates, that the benefits of those provisions apply to that country or territory, and to such other aircraft as His Majesty may by Order in Council specify.

(4) Section thirteen of the Air Navigation Act, 1920 (which provides that the passage of a foreign aircraft shall not be interfered with on the ground that it infringes a patent if the owner of the aircraft deposits or secures a sum in respect of the infringement) shall not apply to or in relation to an aircraft to which this section applies.

4. If and so far as the provisions of any law made by the legislature of Newfoundland or Southern Rhodesia for the purpose of giving effect to the Chicago Convention, any Annex thereto, or an amendment of the Convention or any Annex thereto, or for any other purposes similar to any of the purposes of the Air Navigation

Extra-
territorial
operation of
laws of
Newfoundland
and Southern
Rhodesia.

Acts, 1920 and 1936, or of this Act purport to have extra-territorial operation in relation to aircraft registered in Newfoundland or Southern Rhodesia, as the case may be, the said provisions shall be deemed to have such operation.

Financial
provisions.

5.—(1) There shall be paid out of moneys provided by Parliament—

- (a) any sums payable by His Majesty's Government in the United Kingdom by way of contribution to the expenses of the International Civil Aviation Organization under the Chicago Convention ;
- (b) such expenses of any delegate, representative or nominee of His Majesty's Government in the United Kingdom appointed for any purposes connected with the Chicago Convention as may be approved by the Treasury ;
- (c) any expenses incurred by His Majesty's Government in the United Kingdom for the purposes of Chapter XV of the Chicago Convention (which relates to the provision of airports and other air navigation facilities) ; and
- (d) any other expenses incurred by a Government Department by reason of this Act.

(2) There shall be paid into the Exchequer—

- (a) all sums received by His Majesty's Government in the United Kingdom by way of repayment of expenses incurred for the purposes of the said Chapter XV ; and
- (b) all sums received by way of fees paid under an Order in Council under section one of this Act other than fees which, under an order made under section two of the Air Navigation Act, 1936 (which authorises the delegation of certain functions of the Minister of Civil Aviation to certain bodies) are paid to any of those bodies.

26 Geo. 5. &
1 Edw 8. c. 44.

Construction
of existing
Acts and
this Act.

6.—(1) The Air Navigation Acts, 1920 and 1936, and any other enactment that refers to the Air Navigation Act, 1920, shall, as from the coming into force of sections one, two and three of this Act, have effect as if those sections (except subsection (5) of the said section one) were included in the said Act of 1920 and, in the case of the said section one, were included in Part I thereof.

(2) Any reference in this Act to any enactment shall, unless the context otherwise requires, be construed as a reference to that enactment as amended by any other enactment, including this Act and any reference in the Air Navigation Acts, 1920 and 1936, or in this Act to the provisions of an Order in Council includes, and shall be deemed always to have included, a reference to the provisions of any regulations made, or directions given, under the Order in Council.

(3) In this Act, and (except where the context otherwise requires) in the Air Navigation Acts, 1920 and 1936, the expression "aerodrome" means any area of land or water designed, equipped, set apart or commonly used for affording facilities for the landing and departure of aircraft.

7.—(1) Sections one, two and three of this Act shall come into force on such day as His Majesty by Order in Council certifies to be the day on which the Chicago Convention comes into force for the United Kingdom. Commence-
ment, and
interim and
transitional
provisions

(2) Until the coming into force of the said sections of this Act, the powers conferred by sections one to three of the Air Navigation Act, 1920, on His Majesty in Council shall include power to make by Order in Council such provision as appears to His Majesty in Council to be requisite or expedient for giving effect to section three of Article XIII of the Interim Agreement.

(3) The coming into force of the said sections of this Act shall not affect any Order in Council made in pursuance of Part I of the Air Navigation Act, 1920, before the coming into force of the said sections and whether before or after the commencement of the Air Navigation Act, 1936, or any regulations or directions made or issued before the coming into force of the said sections under such an Order, but any such Order, regulations or directions shall, if and so far as in force immediately before the coming into force of the said sections, continue in force, subject, however, to any Order in Council, regulations or direction made after the coming into force of the said sections.

(4) The power to make Orders in Council conferred by section one of this Act shall include power to make provision for applying any Order so made to or in relation to any certificate, licence or other document issued or validated under an Order in Council made before the coming into force of that section under Part I of the Air Navigation Act, 1920, as it applies to a certificate, licence or other document issued under the Order made under the said section one.

8.—(1) This Act may be cited as the Air Navigation Act, 1947, and the Air Navigation Acts, 1920 to 1938, and this Act may be cited together as the Air Navigation Acts, 1920 to 1947. Short title,
citation,
extent and
repeal.

(2) It is hereby declared that this Act extends to Northern Ireland.

(3) The enactments set out in the Schedule to this Act are hereby repealed, as from the coming into force of sections one, two and three of this Act, to the extent specified in the third column of that Schedule.

Section 8.

SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
10 & 11 Geo. 5. c. 80.	The Air Navigation Act, 1920.	Sections one, two and three.
26 Geo. 5. & 1 Edw. 8. c. 44.	The Air Navigation Act, 1936.	In section five, subsection (4), in section six, the words from "and, in the case of an Order" to "unfit to fly", and in the Fifth Schedule, the provisions amending sections one, two and three of the Air Navigation Act, 1920, and, in the provision amending section seven of that Act, the words from "for subsection (2)" to "section three of this Act".

Printed by Sir NORMAN GIBB SCORGIE, C.V.O., C.B.E.,
Controller of His Majesty's Stationery Office
and
King's Printer of Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C.2; 13a Castle Street, Edinburgh 2;
39-41 King Street, Manchester 2; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller

Price 2d. net

(70013)